

HOUSE No. 3896

The Commonwealth of Massachusetts

PRESENTED BY:

Meghan K. Kilcoyne and Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for recall elections in the town of Berlin.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>2/5/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>2/5/2025</i>

HOUSE No. 3896

By Representative Kilcoyne of Clinton and Senator Kennedy, a joint petition (accompanied by bill, House, No. 3896) of Meghan K. Kilcoyne and Robyn K. Kennedy (by vote of the town) relative to recall elections in the town of Berlin. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for recall elections in the town of Berlin.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Any holder of an elected office in the Town of Berlin may be recalled, and
2 removed from that office, by the qualified voters of the town as provided in this chapter.

3 Section 2. Any fifty (50) registered voters may initiate a recall petition by filing with the
4 Town Clerk of the Town of Berlin an affidavit containing the name of the officer sought to be
5 recalled and a statement of the grounds for recall.

6 After the Town Clerk has certified the affidavit, the Town Clerk shall within four (4)
7 business days, deliver to the voter first named on the affidavit a sufficient number of copies of
8 petition blanks demanding the recall. These blanks shall be issued by the town clerk with the
9 town clerk's signature and official seal attached to them. They shall be dated and addressed to the
10 Select Board of the town, shall contain the name of the person to whom issued, the name of the
11 person sought to be recalled, the office from which recall is sought, the grounds of recall stated

in the affidavit and shall demand the election of a successor to the office. A copy of the petition shall be entered in a record book to be kept in the office of the Town Clerk.

The completed recall petition shall be returned and filed with the Town Clerk on or before 5:00 p.m. of the thirtieth (30th) day after the issuance of the petition to the filers. If the thirtieth day is a Friday, Saturday, Sunday, or a holiday, the petition may be filed on the next business day.

The petition shall be signed by at least ten (10) percent of the registered voters or seventy-five percent (75%) of the average number of voters in the Town Elections for the previous three (3) years, whichever is the lesser amount, and every signature shall also include the place of residence with street and number, of the signer.

The Town Clerk shall, within one (1) business day after the date of its filing with the Town Clerk, submit the recall petition to the Board of Registrars of voters of the Town of Berlin, which shall, within five (5) business days certify in writing the number of Town voter signatures. Upon completion of its certification the Board of Registrars shall return the petition to the Town Clerk.

Section 3. If the petition has a sufficient number of valid signatures and is certified by the Town Clerk and Board of Registrars, the Town Clerk shall submit it to the Select Board within one (1) business day.

The Select Board shall, within three (3) business days, give written notice to the officer subject to the recall that they have received the certification, and if the officer does not resign within five (5) business days after receipt of the notice, order a special election to be held not less than sixty (60) nor more than seventy-five (75) days after the date of the Town Clerk's

certificate that a sufficient petition has been filed, but if any other town election is to occur within ninety (90) days after the date of the certificate, the Select Board may, in their discretion, postpone the holding of the removal election to the date of that other election.

If a vacancy occurs in the office subject to recall after the election has been ordered, the election shall nevertheless proceed as provided in this section.

Section 4. Any officer sought to be recalled may be a candidate to succeed to the office, and unless the officer requests otherwise in writing, the Town Clerk shall place that officer's name on the official ballot without nomination. The nomination of other candidates, the publication of the warrant for the recall election, and the conduct of the election shall all be in accordance with the law relating to elections, unless otherwise provided in this Chapter.

Section 5. The incumbent shall continue to perform the duties of the office until the recall election. If the recall fails, or if the incumbent is re-elected, the incumbent shall continue in the office for the remainder of the unexpired term, subject to recall as before, except as provided in this chapter, Section 7.

If not re-elected in the recall election, the incumbent shall be considered removed upon certification of the election by the Town Clerk.

If the successor fails to qualify within five (5) working days after receiving notification of his or her election, the office shall thereupon be deemed vacant.

Section 6. Ballots used in a recall election shall submit the following proposition in the order indicated:

For the removal/recall of (name of Officer).

55 Against the removal/recall of (name of Officer).

56 Under the propositions shall appear the word "Candidates" and the direction "Vote for
57 One" and beneath this the names of the candidates nominated as herein before provided.

58 If the majority of the votes cast on the recall question is in the affirmative, then the
59 candidate who received the highest number of votes in the special election to fill the vacancy
60 shall be elected. If the majority of the votes cast on the recall question is in the negative, the
61 ballots for candidates to fill the potential vacancy need not be counted.

62 Section 7. No recall petition shall be filed against an officer within six (6) months after
63 taking office, nor in the case of an officer subjected to a recall election and not removed thereby,
64 until at least six (6) months after that election.

65 Section 8. No person who has been recalled from an office or who has resigned from
66 office while recall proceedings were pending against him or her shall be appointed to the office
67 from which the person has been removed within one (1) year after such removal by recall or
68 resignation.